

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 651

BY RESOURCES AND CONSERVATION COMMITTEE

AN ACT

RELATING TO THE BIG GAME DEPREDAATION FUND; AMENDING SECTION 36-115, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE BIG GAME DEPREDAATION FUND AND PAYMENT OF CLAIMS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 36-115, Idaho Code, be, and the same is hereby amended to read as follows:

36-115. NONEXPENDABLE BIG GAME DEPREDAATION FUND -- EXPENDABLE BIG GAME DEPREDAATION FUND. (a) The nonexpendable big game depredation fund is hereby established in the state treasury. On July 1, 2005, the state controller shall transfer two million two hundred fifty thousand dollars (\$2,250,000) from the big game secondary depredation account, created pursuant to section 3, chapter 370, laws of 1990, to the nonexpendable big game depredation fund. Moneys in the fund shall be invested as provided in section 67-1210, Idaho Code, and interest earned on investment of idle moneys in the fund shall be paid to the expendable big game depredation fund. The principal amount in the fund shall not be appropriated, but only the interest earned on investment of the moneys in the fund shall be available for appropriation to the expendable big game depredation fund.

(b) The big game secondary depredation account was created in the state treasury pursuant to section 3, chapter 370, laws of 1990, and shall, from the date of enactment of this act, be known and referred to as the expendable big game depredation fund. In addition to payments to the fund from the nonexpendable big game depredation fund as provided for in subsection (a) of this section and from the set-aside account as provided for in section 36-111(f), Idaho Code, the state controller shall annually, as soon after July 1 of each year as practical, transfer into the fund two hundred thousand dollars (\$200,000) from the fish and game account. Moneys in the fund are subject to appropriation for the purposes recited in section 36-122, Idaho Code, section 36-1108(a)3., Idaho Code, section 36-1108(b), Idaho Code, section 36-1109 and section 36-1110, Idaho Code. Moneys in the fund shall be invested as provided in section 67-1210, Idaho Code, and interest earned on investment of idle moneys in the fund shall be paid to the fund. The expendable big game depredation fund shall be under the administrative direction of the state controller.

(c) The state controller shall annually report to the legislature, the division of financial management, the director of the department of agriculture and the director of the department of fish and game the amount of interest earnings and the availability of moneys in the expendable big game depredation fund for appropriation. At the close of each fiscal year, any unexpended and unencumbered balance that exceeds two million five hundred thousand dollars (\$2,500,000), shall be transferred to the fish and game set-

1 aside account to be earmarked for control of depredation of private prop-
 2 erty by pronghorn antelope, elk and deer and control of predators affect-
 3 ing pronghorn antelope, elk and deer established pursuant to section 36-111,
 4 Idaho Code. Transferred funds to the set-aside account shall be spent pur-
 5 suant to the respective appropriation for the set-aside account.

6 (d) Any payment for damages pursuant to section 36-1108(b), Idaho Code,
 7 is limited by the following conditions and requirements:

8 1. The full amount of any approved claim will not be paid at the time of
 9 approval, but shall be subject to the following conditions and require-
 10 ments:

11 (A) The director of the department of fish and game may order not
 12 more than one-half (1/2) of the amount of the approved claim that
 13 is to be paid from the expendable big game depredation fund to be
 14 paid immediately, if, in the judgment of the director, such pay-
 15 ment is within the estimated total claims liability for that fis-
 16 cal year from the expendable big game depredation fund.

17 (B) The total payment amount to any person for approved claims
 18 in the aggregate in a fiscal year, including any payment to any
 19 pass-through entity as defined in chapter 30, title 63, Idaho
 20 Code, from which the person receives income, and to any household
 21 member, shall not exceed one hundred twenty-five thousand dollars
 22 (\$125,000).

23 (C) The balance of all ~~unpaid~~ approved claim amounts, ~~including~~
 24 ~~claims submitted under the provisions of sections 36-1109 and~~
 25 ~~36-1110, Idaho Code adjusted to account for the one hundred~~
 26 ~~twenty-five thousand dollar (\$125,000) limitation,~~ shall be accu-
 27 mulated to a total as of June 30. If the balance in the expendable
 28 big game depredation fund appropriation is sufficient to pay
 29 the balance of all such approved and adjusted claims, the direc-
 30 tor shall pay them. If the balance is not sufficient to pay all
 31 ~~approved~~ such claims, the director shall authorize a proportion-
 32 ate amount to be paid to each claimant.

33 (D) Moneys remaining in the fund after payment is made to approved
 34 and adjusted claims shall be used by the director to pay the re-
 35 mainder of the approved claims that remains unpaid because of the
 36 limitation required by this subsection. Such unpaid, approved
 37 claim amounts shall be totaled with the unpaid claim amounts from
 38 subsection (e) of this section. If moneys remaining in the fund
 39 are sufficient to pay the remainder of all such unpaid, approved
 40 claims, the director shall pay them. If the moneys are not suf-
 41 ficient to pay the remainder of such claims, the director shall
 42 authorize a proportionate amount to be paid to each claimant.

43 ~~(D)~~ (E) The director shall encumber the balance of moneys appro-
 44 priated from the expendable big game depredation fund, or moneys
 45 sufficient to pay the approved claims, whichever is the lesser.

46 2. Each claimant must submit a statement of total damages sustained per
 47 occurrence. For each such statement, the following conditions and re-
 48 quirements apply:

49 (A) The amount of seven hundred fifty dollars (\$750) must be de-
 50 ducted from each such statement. This deductible is a net loss to

the owner or lessee, and will not be compensated for from the expendable big game depredation fund, but the owner or lessee is required to absorb only a single seven hundred fifty dollar (\$750) deductible per claim.

(B) Provided however, that for claims in subsequent years for damage to standing or stored crops in the same location as the first occurrence, the seven hundred fifty dollar (\$750) deductible will be waived if the department failed to prevent property loss following the first occurrence.

3. Each approved claim must contain a certification by the director of the department of fish and game, or his designee, that:

(A) All statutory requirements leading up to approval for payment have been met.

(B) The claimant has certified that he will accept the amount approved as payment in full for the claim submitted, subject to the conditions and requirements of this subsection.

(e) Any claim for damages pursuant to section 36-1109, Idaho Code, is limited by the following conditions and requirements:

1. The full amount of any approved claim will not be paid at the time of approval, but shall be subject to the following conditions and requirements:

(A) The director of the department of fish and game may order that not more than one-half (1/2) of the amount of the approved claim to be paid immediately, if, in the judgment of the director, such payment is within the estimated total claims liability for that fiscal year from the expendable big game depredation fund.

(B) The total payment amount to any person for approved claims in the aggregate in a fiscal year, including any payment to any pass-through entity as defined in chapter 30, title 63, Idaho Code, from which the person receives income, and to any household member, shall not exceed ten percent (10%) of the original expendable big game depredation fund appropriation for the fiscal year.

(C) The balance of all unpaid approved claim amounts, adjusted to account for the ten percent (10%) limitation, shall be accumulated to a total as of June 30. If the balance in the expendable big game depredation fund appropriation is sufficient to pay all such approved and adjusted claims, the director shall promptly pay them. If the balance is not sufficient to pay the balance of all approved such claims, the director shall pay a proportionate share to each claimant.

(D) Moneys remaining in the fund after payment is made to approved and adjusted claims shall be used by the director to pay the remainder of the approved claims that remains unpaid because of the limitation required by this subsection. Such unpaid, approved claim amounts shall be totaled with the unpaid claim amounts from subsection (d) of this section. If moneys remaining in the fund are sufficient to pay the remainder of all such unpaid, approved claims, the director shall pay them. If the moneys are not sufficient to pay the remainder of such claims, the director shall authorize a proportionate amount to be paid to each claimant.

~~(D)~~ (E) The director shall encumber the balance of the appropriation, or moneys sufficient to pay the approved claims, whichever is the lesser.

2. Each claimant must submit a statement of total damages sustained per occurrence. For each such statement, the following condition applies: the amount of seven hundred fifty dollars (\$750) must be deducted from each such statement. Provided however, if an owner or caretaker suffers damage to or destruction of livestock in more than one (1) occurrence during the fiscal year, then only one (1) deductible must be subtracted from the claims and the deductible on subsequent claims will be waived. This deductible is a net loss to the owner or caretaker, and will not be compensated for from the expendable big game depredation fund.

3. Each approved claim must contain a certification by the director of the department of fish and game, or his designee, that:

(A) All statutory requirements leading up to approval for payment have been met.

(B) The claimant has certified that he will accept the amount approved as payment in full for the claim submitted, subject to the conditions and requirements of this subsection.

(f) Any claim for damages to forage pursuant to section 36-1110, Idaho Code, is limited by the following conditions and requirements:

1. The full amount of any approved claim will not be paid at the time of approval, but shall be subject to the following conditions and requirements:

(A) The director of the department of fish and game may order not more than one-half (1/2) of the amount of the approved claim to be paid immediately, if, in the judgment of the director, such payment is within the estimated total claims liability for that fiscal year from the expendable big game depredation fund.

(B) The balance of all ~~unpaid~~ approved claim amounts shall be accumulated to a total as of June 30. If the balance in the expendable big game depredation fund appropriation is sufficient to pay all approved claims, the director shall pay them. If the balance is not sufficient to pay all approved claims, the director shall authorize a proportionate amount to be paid to each claimant.

(C) The director shall encumber the balance of the appropriation, or moneys sufficient to pay the approved claims, whichever is the lesser.

2. Each claimant must submit a statement of total damages sustained per occurrence. For each such statement, the following conditions and requirements apply:

(A) The amount of seven hundred fifty dollars (\$750) must be deducted from each such statement. This deductible is a net loss to the owner or lessee, and will not be compensated for from the expendable big game depredation fund.

(B) The total amount of all claims for damages to forage that may be paid from the expendable big game depredation fund shall not exceed fifty percent (50%) of the amount of interest earned from investments of moneys in that fund in any one (1) fiscal year.

1 3. Each approved claim must contain a certification by the director of
2 the department of fish and game, or his designee, that:

3 (A) All statutory requirements leading up to approval for payment
4 have been met.

5 (B) The claimant has certified that he will accept the amount ap-
6 proved as payment in full for the claim submitted, subject to the
7 conditions and requirements of this subsection.

8 SECTION 2. An emergency existing therefor, which emergency is hereby
9 declared to exist, this act shall be in full force and effect on and after its
10 passage and approval.